

Pirangi Srinivas Kumar, Khammam Dist vs Jada , Pirangi Sailaja, Khammam Dist on 2 February, 2026

Author: K.Lakshman

Bench: K. Lakshman

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

THE HON'BLE SRI JUSTICE K. LAKSHMAN
AND
THE HON'BLE SRI JUSTICE B.R.MADHUSUDHAN RAO

FAMILY COURT APPEAL No.59 of 2015

DATE OF JUDGMENT: 02.02.2026

Between:

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Appellant.

AND

xxxxxxx

Respondent.

This Court made the following:

JUDGMENT (Per Hon'ble Sri Justice K.Lakshman)

Heard Mr.Sandeep Kumar Bodla, learned counsel for the appellant and Mr.Kowturu Pavan Kumar, learned counsel for the respondent.

2. This appeal is filed challenging the order dated 17.09.2013 in F.C.O.P.No.8 of 2010 passed by the learned Judge, Family Court, Khammam.

3. Appellant is the husband and respondent is the wife. Their marriage was performed on 31.03.2002 as per Hindu rites and customs. It is an arranged marriage. Out of the wedlock, they were blessed with a son on 06.08.2003.

4. Appellant/husband has filed the aforesaid petition under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the grounds of cruelty and desertion. It is alleged that the respondent/wife used to harass him by creating troubles to the family members of the appellant. She expressed her intention twice that she is not interested to live along with the other family members of the appellant. Appellant requested the respondent to live with him and other family members stating that the appellant got job on compassionate ground on the death of

his father and he is under an obligation to perform the marriage of his unmarried sister and provide maintenance to his mother. Respondent did not change her attitude. Due to the behavior of the respondent, appellant took separate house and lived with the respondent at Burhanpuram, Khammam Town, for eight months. He has sold away the house plot due to the problems created by the respondent and her father. She has lodged a complaint against the appellant with Police, Khammam, who in turn, convened a panchayat. Even then, respondent did not change her attitude.

5. On instructions of her father, respondent left the company of the appellant in the month of June, 2004 and she is living with her parents at Khammam. He has further alleged that she has filed a petition under Section 125 of Cr.P.C. vide M.C.No.31 of 2004 seeking maintenance. She has also implicated the appellant in criminal case i.e., C.C.No.2 of 2009, which was ended in acquittal. Thus, respondent subjected him to cruelty and has deserted him from the month of June, 2004.

6. Respondent has filed the counter denying the said allegations. According to her, appellant harassed her. Therefore, she has lodged a complaint for the offence punishable under Section 498A of IPC. She has filed a petition under Section 125 of Cr.P.C. seeking maintenance. She has also filed a petition under Section 9 of the Hindu Marriage Act, 1955 seeking restitution of conjugal rights vide F.C.O.P.No.4 of 2009 and the same was allowed on 08.07.2009. Instead of joining her company, appellant has filed the aforesaid F.C.O.P.No.8 of 2010 seeking dissolution of marriage. Thus, to get rid of the respondent, appellant filed the aforesaid F.C.O.P.

7. To prove the said cruelty and desertion, appellant examined himself as PW.1, his family friend as PW.2 and one known person as PW.3. He has filed Exs.A.1 to A.4 i.e., Ex.A.1

- certified copy of Judgment in C.C.No.2 of 2009 on the file of the learned III Additional Judicial Magistrate of the First Class, Khammam, Exs.A.2 and 3 - certified copies of decree and order in F.C.O.P.No.4 of 2009 on the file of the learned Family Court, Khammam and Ex.A.4 - marriage photograph. To disprove the said allegations, respondent examined herself as RW.1 and her father and friend as RWs.2 and 3. She has filed Exs.B.1 to B.3 i.e., Ex.B.1 - certified copy of order in F.C.O.P.No.4 of 2009, Ex.B.2 - certified copy of legal notice, dated 13.11.2009 and Ex.B.3 certified copy of legal notice, dated 06.02.2010 along with postal acknowledgment.

8. On consideration of the entire evidence, both oral and documentary, vide the impugned order dated 17.09.2013, learned Family Court dismissed the said F.C.O.P. holding that the appellant herein failed to prove both the cruelty and desertion.

9. Perusal of record would reveal that the respondent has filed a petition under Section 9 of the Hindu Marriage Act, 1955 vide F.C.O.P.No.4 of 2009 and the same was allowed on 08.07.2009. Appellant did not prefer any appeal challenging the said order. Therefore, the said order attained finality. Vide Ex.A.3 order, learned Family Court directed the appellant to join the company of the respondent. Without joining the company of the respondent, appellant has filed the aforesaid F.C.O.P.No.8 of 2010 on 18.01.2010. The only explanation offered by him is that he has issued legal notice. Even then she did not join him. In fact, the said contention of the appellant is contrary to the record.

10. Perusal of record would also reveal that respondent has lodged a complaint against the appellant for the offence punishable under Section 498A of IPC vide C.C.No.2 of 2009, which was ended in acquittal. Admittedly, neither respondent nor the State preferred any appeal against the said Judgment and it had attained finality.

11. Perusal of record would also reveal that respondent examined the maternal aunt of the appellant as RW.3. She has specifically deposed that after the respondent gave birth to a male child, appellant, his mother and sister, created troubles and demanded the respondent to bring additional dowry. Appellant beat the respondent on several occasions and necked her out on which RW.3 and other elders, who were present at the time of marriage negotiations, held a panchayat. After hearing both sides, they found no fault on the part of the respondent and her parents. Therefore, they advised the appellant, his mother and sister, not to harass the respondent. Even then, appellant, his mother and sister, harassed the respondent both mentally and physically. They have necked out the respondent. Even then appellant did not elicit anything from RW.3 during cross- examination. On consideration of the said evidence only, learned Family Court dismissed the said O.P. filed by the appellant.

12. Learned counsel for the appellant would contend that appellant is working in Commercial Tax Department and respondent has implicated him in a criminal case, which was ended in acquittal. Thus, respondent subjected him to cruelty. In view of the lodging of complaint against the appellant for the offence punishable under Section 498A of IPC, respondent subjected him to cruelty.

13. As discussed supra, it is the appellant, who filed the aforesaid F.C.O.P.No.8 of 2010 against the respondent seeking dissolution of marriage on the grounds of cruelty and desertion. Therefore, he has to plead and prove the same by adducing cogent evidence. The evidence of PWs.2 and 3 is not useful for the appellant's case.

14. Human mind is extremely complex and human behaviour is equally complicated. Similarly human ingenuity has no bound, therefore, to assimilate the entire human behaviour in one definition is almost impossible. What is cruelty in one case may not amount to cruelty in other case. The concept of cruelty differs from person to person depending upon his upbringing, level of sensitivity, educational, family and cultural background, financial position, social status, customs, traditions, religious beliefs, human values and their value system as observed by the Apex Court in *Samar Ghosh v. Jaya Ghosh* 1.

15. Matrimonial cases before the Courts pose a different challenge, quite unlike any other, as we are dealing with human relationships with its bundle of emotions, with all its faults and frailties. It is not possible in every case to pin point to an act of "cruelty" or blameworthy conduct of the spouse. The nature of relationship, the general behaviour of the parties towards each other, or long separation between the two are relevant factors which a Court must take into consideration as observed by the Apex Court in *Rakesh Raman v. Smt. Kavita* 2.

. (2007) 4 SCC 511 . 2023 AIR (SC 2144

16. Cruelty is a course or conduct of one, which is adversely affecting the other. The cruelty may be mental or physical, intentional or unintentional. The cruelty alleged may largely depend upon the type of life the parties are accustomed to or their economic and social conditions and their culture and human values which they attach importance. Each case has to be decided on its own merits as held by the Apex Court in Naveen Kohli v. Neelu Kohli 3.

17. Cruelty is not defined in any statute. It is a course or conduct of one, which is adversely affecting the other. We have to consider the entire evidence and the allegations made by the husband, assess the same and come to a conclusion that the same amounts to cruelty or not.

18. As discussed supra, at the cost of repetition, petition filed by the respondent/wife vide F.C.O.P.No.4 of 2009 under Section 9 of the Hindu Marriage Act, 1955 was allowed on 08.07.2009. Thereafter, appellant has filed the present petition on 18.02.2010 seeking dissolution of marriage. The said fact would reveal that appellant filed the aforesaid F.C.O.P. after allowing of . (2006) 4 SCC 558 F.C.O.P.No.4 of 2009 filed by the respondent seeking restitution of conjugal rights under Section 9 of the Hindu Marriage Act, 1955. Admittedly, appellant did not file any appeal to challenge the order dated 08.07.2009. Therefore, the said order has attained finality.

19. As discussed supra, on consideration of the said aspects only, learned Family Court dismissed the said F.C.O.P. filed by the appellant/husband. It is a reasoned order and there is no error in it. Therefore, appellant herein failed to make out any case to interfere with the impugned order.

20. In the light of the aforesaid discussion, this appeal is liable to be dismissed and accordingly, the same is dismissed.

Miscellaneous applications pending, if any, shall stand closed. There shall be no order as to costs.

_____ K. LAKSHMAN, J _____
B.R.MADHUSUDHAN RAO, J 2nd February, 2026.

YNK THE HON'BLE SRI JUSTICE K. LAKSHMAN AND THE HON'BLE SRI JUSTICE
B.R.MADHUSUDHAN RAO FAMILY COURT APPEAL No.59 of 2015 2nd February, 2026.

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